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Title 15 —Commerce and Foreign Trade

Subtitle B —Regulations Relating to Commerce and Foreign Trade

Chapter VII —Bureau of Industry and Security, Department of Commerce

Subchapter C —Export Administration Regulations

Part 734 —Scope of the Export Administration Regulations

Authority: 50 U.S.C. 4801-4852; 50 U.S.C. 4601 *et seq.*; 50 U.S.C. 1701 *et seq.*; E.O. 12938, 59 FR 59099, 3 CFR, 1994 Comp., p. 950; E.O. 13020, 61 FR 54079, 3 CFR, 1996 Comp., p. 219; E.O. 13026, 61 FR 58767, 3 CFR, 1996 Comp., p. 228; E.O. 13222, 66 FR 44025, 3 CFR, 2001 Comp., p. 783; E.O. 13637, 78 FR 16129, 3 CFR, 2014 Comp., p. 223; Notice of November 7, 2024, 89 FR 88867 (November 8, 2024).

Source: 61 FR 12746, Mar. 25, 1996, unless otherwise noted.

§ 734.15 Release.

- (a) Except as set forth in §§ 734.18 and 734.19, “technology” and “software” are “released” through:
 - (1) Visual or other inspection by a foreign person of items that reveals “technology” or source code subject to the EAR to a foreign person; or
 - (2) Oral or written exchanges with a foreign person of “technology” or source code in the United States or abroad.
- (b) Any act causing the “release” of “technology” or “software,” through use of “access information” or otherwise, to yourself or another person requires an authorization to the same extent an authorization would be required to export or reexport such “technology” or “software” to that person.

[81 FR 35604, June 3, 2016, as amended at 88 FR 63841, Sept. 18, 2023]